

ORDINANCE NO. _____

ENTITLED: “PURSUANT TO SECTION 2.2.1 ZONING MAP AMENDMENTS, SECTION 5.1.2 ZONING DISTRICTS ESTABLISHED, AND SECTION 5.1.3 OFFICIAL ZONING MAP, OF THE UNIFIED DEVELOPMENT CODE, CHANGING THE ZONING CLASSIFICATION FROM COUNTY MR MEDIUM-DENSITY RESIDENTIAL TO NR-2 NEIGHBORHOOD RESIDENTIAL - MEDIUM-DENSITY FOR LOT 14, BLOCK 5, REPLAT OF HOMESTEAD ADDITION, FIRST FILING, LARAMIE COUNTY, WYOMING (LOCATED SOUTH OF HOMESTEAD AVENUE, NORTH OF THE CHEYENNE GREENWAY).”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owners of the property described herein have applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on April 2, 2018, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lot 14, Block 5, Replat Homestead Addition, First Filing, Laramie County, Wyoming is hereby changed to NR-2 Neighborhood Residential – Medium Density.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval, publication, and the recording of the annexation encompassing the area described in Section 4 with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

MARIAN J. ORR, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

publish date: _____

STAFF REPORT - SUMMATION

Lot 14, Block 5, Replat Homestead Addition, First Filing **Zoning Map Amendment Process**

CASE NUMBER:	UDC-18-00070	SUBDIVISION CODE: HAN 01
PREPARED BY:	Eric Hammer / Seth Lloyd	
MEETING DATES:	April 2, 2018 – Planning Commission	Public Meeting
	April 9, 2018 – City Council	1 st Reading
	April 17, 2018 – Public Services Committee	1 st Reading
	April 23, 2018 – City Council	2 nd Reading
	May 8, 2018 – Public Services Committee	2 nd Reading
	May 14, 2018 – City Council	3 rd Reading

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Master Application; Zone Change Map; List of Neighbors to be Notified; Draft Neighbor Notification Letter; - Submitted 2/23/2018 as the original project submission.

PLANNING COMMISSION RECOMMENDATION: At their regular meeting on April 2, 2018, the City of Cheyenne Planning Commission voted 3-1 to recommend approval of the zone change request from County MR Medium-density Residential to NR-2 Neighborhood Residential – Medium Density.

STAFF RECOMMENDATION: Staff recommends approval of the zone change request from County MR Medium-density Residential to NR-2 Neighborhood Residential – Medium Density with no recommended staff conditions.

STAFF REPORT

Lot 14, Block 5, Replat Homestead Addition, First Filing **Zone District Map Amendment Process**

CASE NUMBER: UDC-18-00070 **SUBDIVISION CODE:** HAN 01

PREPARED BY: Eric Hammer / Seth Lloyd

OWNER Leader Custom Homes, LLC
255 Storey Boulevard
Cheyenne, WY 82009

AGENT: Casey L. Palma
Steil Surveying Services
1102 W 19th Street
Cheyenne, WY 82001

PROJECT: Lot 14, Block 5, Replat Homestead Addition, First Filing Zone Change

DESCRIPTION: Request to rezone 74,198 square feet (annexation in progress) to NR-2 for residential development purposes.

LOCATION:

1. Legal Description: Lot 14, Block 5, Replat Homestead Addition, First Filing, 1st Filing, Laramie County, Wyoming.
2. Location: Located south of Homestead Avenue, north of the Cheyenne Greenway
3. Address: Unaddressed.

PROPERTY SIZE: 74,198 square feet

CURRENT ZONING: County MR Medium Density Residential

PROPOSED ZONING: City NR-2 Neighborhood Residential – Medium Density

EXISTING USE: Vacant.

PROPOSED USE: Residential, stormwater detention.

SURROUNDING LAND USES:

SURROUNDING	LAND USE(s)	ZONING	ANNEXATION STATUS
North	Residential	MR	City
South	Cheyenne Greenway	P	City
East	Residential	MR	City
West	Vacant	MR	City

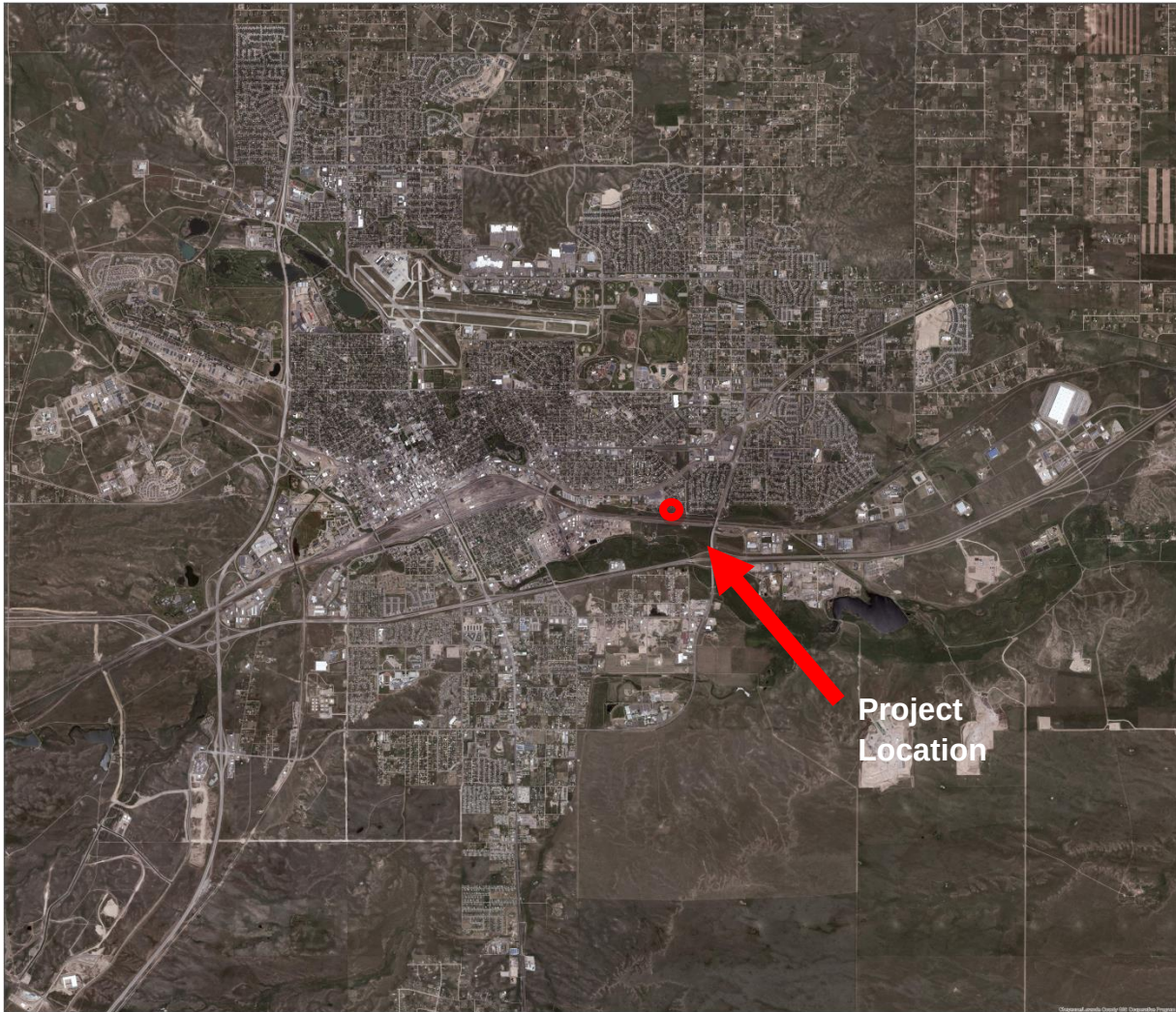
EXECUTIVE SUMMARY:

This zone change application proposes changing the zoning classification of the subject property from County MR Medium Density Residential to City NR-2 Neighborhood Development – Medium Density for residential development purposes. The land is currently not within City limits, but the applicant has submitted a petition to annex this land and will likely propose a replat of the land in the near future. As the land does not currently have a City zoning designation, it must be rezoned in order to be developed.

The land proposed to be rezoned to NR-2 is intended to be developed with small detached dwellings (single family homes). The proposal is generally congruent with the policies of PlanCheyenne and the future land use designation of the land.

Due to meeting the review criteria of Section 2.2.1.d of the Cheyenne Unified Development Code, staff recommends approval of this zone change.

LOCATION/VICINITY MAP:



Map # 1 – Project Location/ Vicinity Map
Source: Cheyenne/Laramie County GIS Cooperative Program

AERIAL OF SUBJECT PROPERTY:



Map # 2 - Site aerial highlighting the subject property located south of Homestead Avenue, north of the Cheyenne Greenway.

Source: Cheyenne/Laramie County GIS Cooperative Program

VIEW OF SUBJECT PROPERTY:



Photograph # 1 –Image of the subject property from the current terminus of Henderson ROW facing southeast.

Source: Planning and Development Department Image



Photograph # 2 – Image of the subject property from the current terminus of Hanson ROW facing southwest towards the Greenway.

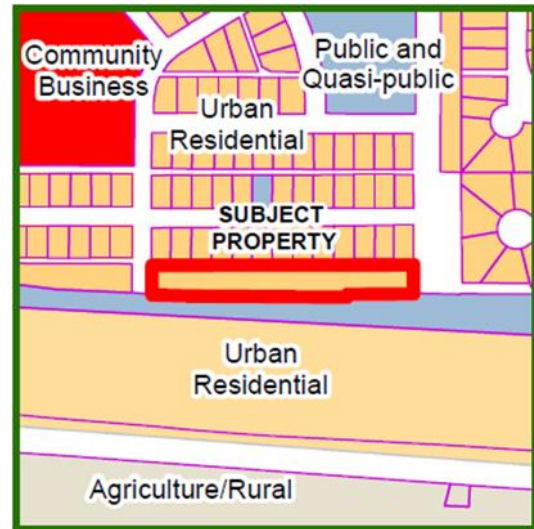
Source: Planning and Development Department Image

ZONE CHANGE DATA: *In reviewing, providing comments, and making recommendations and decisions on a proposed Zone Change Request, the Staff, Planning Commission and City Council shall use the following 8 criteria of UDC Section 2.2.1.d:*

1. PLANCHEYENNE - *The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.*

PlanCheyenne is supportive of this zone change. The Urban Service Boundary, which is the area in which future urban growth is supported, is stated by Policy 1.2.A. This parcel is within the Urban Service Boundary. The land is also a true county pocket, as it is 100% surrounded by land that is already annexed into city limits. Therefore, Policy 1.4.B. is supportive of this annexation, as it supports revitalization of a county pocket.

On the future land use map found in PlanCheyenne, the subject land has been designated as Urban Residential. The Urban Residential land use designation includes residential uses as a primary use and includes a wide variety of supporting and complementary uses as secondary uses. The applicant is proposing to develop this property with residential uses.



Map #3 – Future Land Use
Source: Cheyenne/Laramie County GIS Cooperative Program

2. SURROUNDING AREA - *The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.*

The application is compatible with the zoning of nearby property. The property is currently zoned County MR Medium Density Residential and, if annexed by the Governing Body, would need a City zoning district to be developed. This application proposes rezoning the land outlined in red in Map #5 to NR-2 Neighborhood Residential – Medium Density.

Although the City MR zoning district would most closely match the zoning to the north, the NR-2 designation is not incompatible with the surrounding area. Both the MR and NR-2 zones are applicable to areas designated on the future land use map of PlanCheyenne as Urban Residential, which this land is designated as.

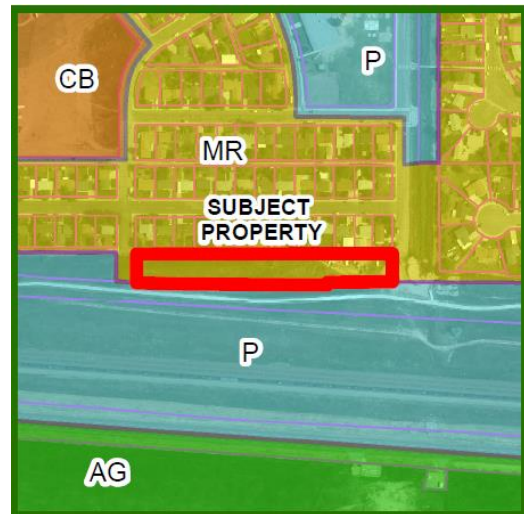
Although NR-2 allows slightly more density than MR, the differences are minor in nature, as both are intended for a medium amount of density. The applicants are proposing constructing detached dwellings and MR zone allows detached dwelling lot type classifications of DD5 through DD7, whereas NR-2 allows detached dwelling lot types of DD6 through DD8. Within Section 5.3 of the UDC, which establishes zoning districts, the MR zone has an intent statement that is very general in nature:

The MR District is intended for a mix of density and dwelling types within a neighborhood. All uses require full access to public infrastructure and city services. The regulations are designed to protect the neighborhood character of the district and protect the primarily residential use of land.

By comparison, the NR-2 zone has an intent statement that is very similar, but more specific regarding density:

The NR-2 District is intended for a medium density and mix of dwelling types that promote a consistent neighborhood character. All uses require full access to public infrastructure and city services. The regulations are designed to protect the neighborhood character of the district and protect the primarily residential use of land. The overall density of this district should be between 10 and 18 dwelling units per acre.

The density the applicants have proposed to staff is within that intended density range at approximately 10 units per acre, which is congruent with density range of the NR-2 intent statement. Staff finds that the NR-2 zone is generally appropriate for this property due to congruence with the comprehensive plan and the intent statement of the NR-2 zone.



Map #4 – Current Zone Districts
Source: Cheyenne/Laramie County GIS
Cooperative Program

3. ZONING: BASIC STANDARDS & USES - *The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.*

This property is currently within the County MR zoning district. If the Governing Body approves the annexation of this property, it would need to be rezoned to a City zone before any development activity could commence.

4. DEVELOPMENT POTENTIAL - *The ability of the subject property and surrounding vicinity to be developed per the Subdivision Standards in Article 4 considering the proposed zoning.*

The property could be developed per the Subdivision Standards in Article 4. The residential portion of the subject property could develop within the standards of the NR-2 zoning district after the land is replatted into lots that are suitable for development.

5. ZONING: INTENT, APPLICABILITY, & DESIGN OBJECTIVES - *The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.*

This application can support the intent and applicability statements of the NR-2 Neighborhood Residential – Medium Density zoning district, as stated earlier within this report. The NR-2 zoning district is subject to the Residential Design Standards of Section 6.6, which development on this area can meet after the property is replatted.

6. ZONING: FUTURE DEVELOPMENT - *The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.*

The subject property would be able to meet all the applicable standards if this application is approved. Development options would not be limited by this zone change in the event this specific proposal is not executed. If the specific proposal associated with this application is not executed, another developer could continue with a similar proposal or replat the property to suit their needs.

7. PUBLIC HEALTH, SAFETY, AND WELFARE – *Whether the application will harm the public health, safety, or general welfare.*

Wyoming State Section 15-1-103 (a) (xli) grants authority to municipalities to adopt ordinances which generally promote the public health, safety and general welfare of its citizens. This zone change would not harm the public health, safety, or welfare of the public.

8. REVIEW

Agencies with comments:

Development: Eric Hammer

Map is acceptable. **P&D STAFF: Provided as FYI**

Planning: Eric Hammer

NR-2 is generally applicable to Urban Residential designated areas from the Future Land Use map. **P&D STAFF: Provided as FYI**

Reviewing agencies without comments:

Development: Susana Montana

Engineering Department: Amy Allen

GIS/Engineering/Addressing: Gary Stogsdill

Mapping: Joe Fisher

Metro Planning Office (MPO): Nancy Olson

Urban Planning: Eric Hammer

Reviewing agencies without response:

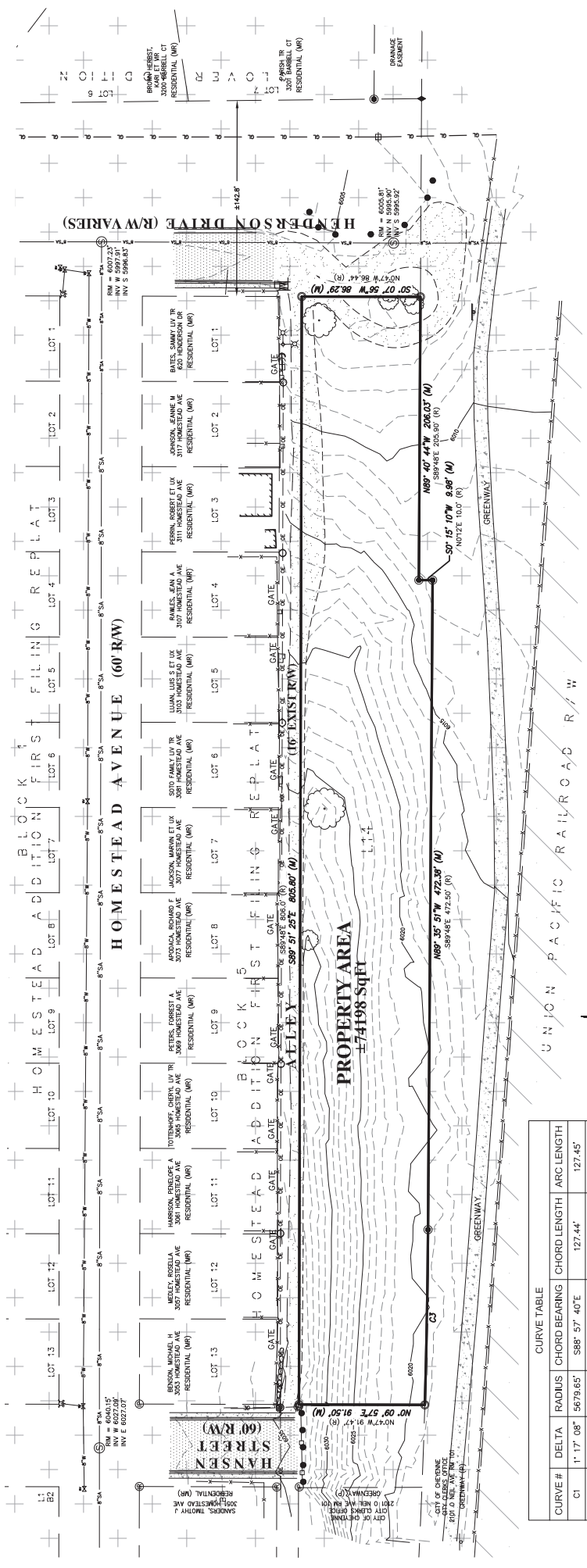
Engineering Department: Mark Escobedo

Parks and Recreation Admin: Teresa Moore

Other Comments:

None

Cc: Owner, Agent/Applicant, File



CURVE TABLE			
CURVE #	DELTA	RADIUS	CHORD LENGTH
C1	1° 17' 08"	5679.65'	127.44'
C1(R)		5679.65'	127.57'

ZONE DISTRICT

EXISTING ZONE DISTRICT: (COUNTY) NR - MEDIUM-DENSITY RESIDENTIAL
PROPOSED ZONE DISTRICT: NR-2 (CITY) - NEIGHBORHOOD RESIDENTIAL MEDIUM-DENSITY

LEGEND

FOUND 1 1/2" ALUMINUM CAP STAMPED "LS 3047"

(M) DENOTES MEASURED DATA THIS SURVEY

(R) DENOTES RECORD DATA

-O- EXISTING UTILITY POLE

EXISTING FIRE HYDRANT

EXISTING CATCH BASIN

EXISTING WATER VALVE

EXISTING WATER MAIN

EXISTING SANITARY SEWER MAIN

EXISTING STORM SEWER LINE

EXISTING LIGHT POLE EXISTING

EXISTING SANITARY SEWER MANHOLE

EXISTING STORM SEWER MANHOLE

EXISTING OVERHEAD ELECTRIC LINES

EXISTING GUARD RAIL

EXISTING BITUMINOUS SURFACE

EXISTING CONCRETE SURFACE

EXISTING GRAVEL SURFACE

CURRENT CITY OF CHEYENNE INCORPORATED LANDS

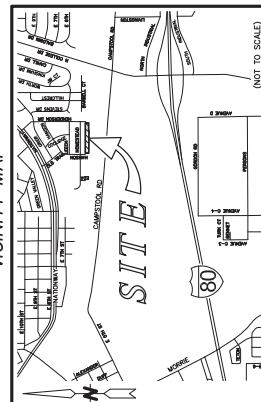
CURRENTLY UNINCORPORATED LANDS

LAND DESCRIPTION

All of Lot 14, Block 5, Homestead Addition Replat,
Laramie County, Wyoming.

Containing 1.70 acres, more or less.

VICINITY MAP



CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steel Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

ZONE CHANGE MAP
FOR
WILLOW HEIGHTS

LOT 14, BLOCK 5
HOMESTEAD ADDITION, FIRST FILING REPLAT
CITY OF CHEYENNE

SITUATED IN THE N1/2NE1/4 SECTION 4,
T.13N., R.66W., 6th P.M.,
LARAMIE COUNTY, WYOMING

PREPARED FEBRUARY, 2018



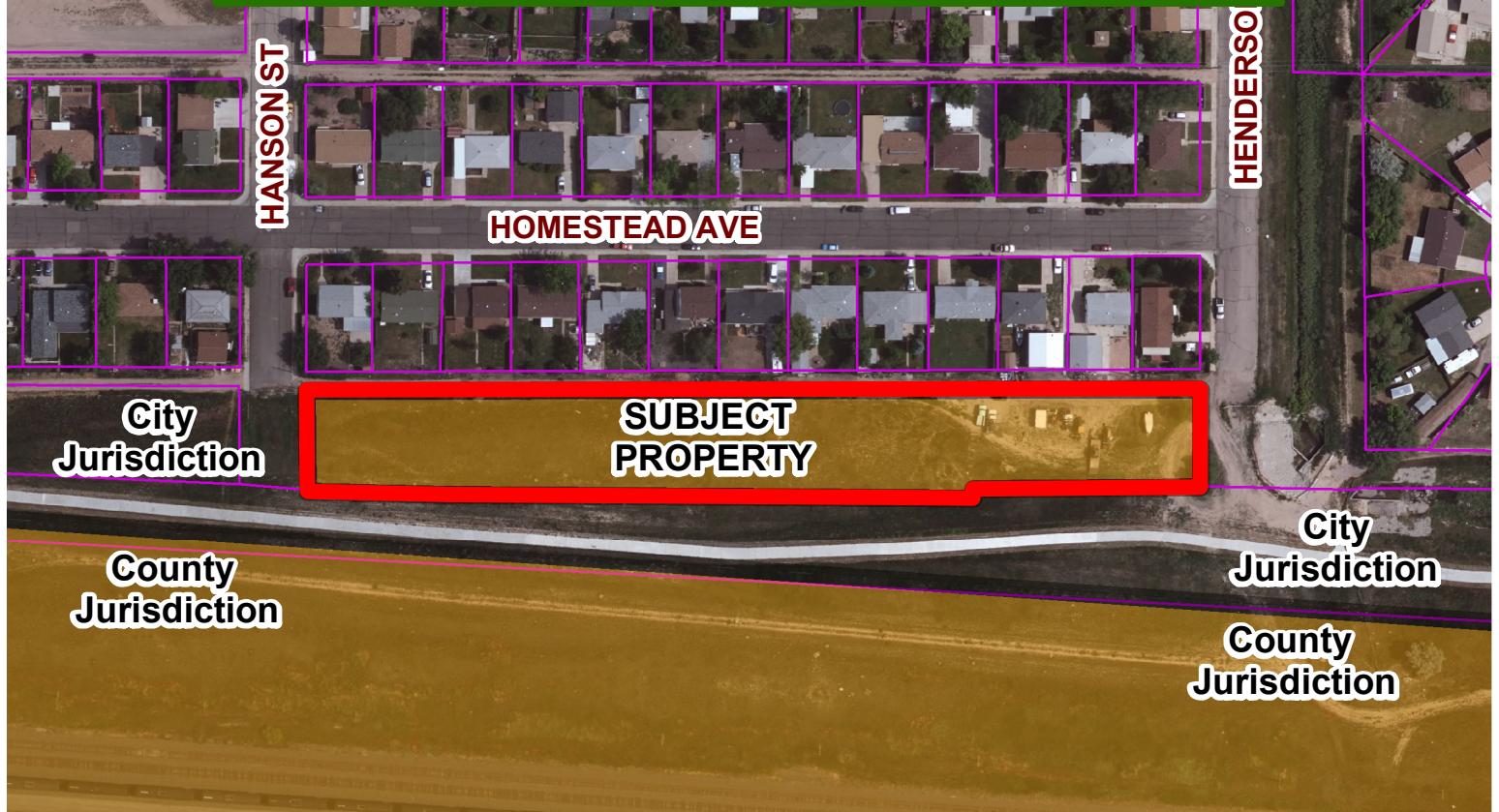
STEEL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
1102 WEST 1916 ST. CHEYENNE, WY. 82001 o (307) 634-7373
756 GILCHRIST ST. WHEATLAND, WY. 82201 o (307) 322-9789
www.SteelSurvey.com o info@SteelSurvey.com

REVISED: 02/27/2018

\\2018 DWG\\18084 GANSON HOMESTEAD ADDITION\\18084 WILLOW HEIGHTS.dwg

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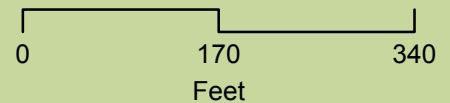
Lot 14, Block 5 Homestead Addition, 1st Filing Replat Annexation and Zone Change



UDC-18-00069
Annexation
UDC-18-00070
Zone Change

Applicant: Leader Custom Homes, LLC
Agent: Steil Surveying
307-634-7273

Scale applies to
above map only



Zone Districts



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use

